

Court No. - 2

Case :- WRIT - C No. - 4159 of 2022

Petitioner :- Farhan Khan

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Shivesh Mishra, Vinod Kumar Pandey

Counsel for Respondent :- C.S.C., Mukesh Kumar Singh

Hon'ble Dr. Kaushal Jayendra Thaker, J.

Hon'ble Ajai Tyagi, J.

Pleadings be completed on or before 4.4.2022.

List on 4.4.2022 as fresh.

Order Date :- 25.2.2022

Mukesh

Court No. - 3

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Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Shivesh Mishra, Vinod Kumar Pandey

Counsel for Respondent :- C.S.C., Mukesh Kumar Singh

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard learned counsels for the parties.

This writ petition has been filed praying, inter alia, for the following relief:-

"a) Issue a writ, order or direction in the nature of certiorari quashing the impugned recovery certificate dated 24.6.2021 issued by the respondent no.5, requiring the petitioner to pay an amount amounting to Rs. 11,16,980/

Sri Mukesh Kumar Singh, learned counsel for the respondent No.6 / Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed of** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent No. 6, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No. 6 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner. The respondent no.6 shall confront the petitioner with all adverse materials in his possession within a week of submission of the certified copy of this order.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 25.5.2022

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